SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 04/10/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties **EMAIL THE DEPARTMENT** at dept32@contracosta.courts.ca.gov to request argument and **SPECIFY THE ISSUES to be argued**.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1
Meeting ID: 161 336 0625
Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
***HEARING ON MOTION IN RE: SANCTIONS FOR FAILURE OF COUNSEL: MICHAEL WADDINGTON TO OBEY RULES (CONTINUED FROM 03.13.2026)**
FILED BY:
TENTATIVE RULING:

In view of counsel Waddington's motion to be relieved as counsel for Navid Bahrami-Daghigh, and the reasons therefore, the court denies the motion for sanctions.

2. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

PARTIES TO APPEAR.

3. 9:00 AM CASE NUMBER: C22-02313
CASE NAME: LAURIE NOE VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: TO DISMISS**
FILED BY: GENERAL MOTORS, LLC
****TENTATIVE RULING:****

Before the Court is a motion by defendant General Motors, LLC to dismiss the action. For the reasons set forth, the motion is **denied.**

Background

Plaintiff Laurie Noe filed her complaint initiating this action on October 28, 2022. She filed her operative second amended complaint ("2AC") on July 31, 2023.

Plaintiff alleges she leased a 2019 Chevy Bolt electric vehicle, vehicle identification number ("VIN") 1G1FZ6S00K4113497 (the "Vehicle") manufactured and distributed by defendant General Motors, LLC ("GM") which had a "Battery Defect" more fully described in the operative second amended complaint ("2AC"). (2AC ¶¶ 6, 9, 23-29 [model years 2017 through 2022 affected by the Battery Defect].) She initiated this action on October 28, 2022. Plaintiff's 2AC filed in July 2023 alleges five causes of action: the first four causes action alleging claims under the Song-Beverly Consumer Warranty Act, Civil Code section 1790, *et seq.* ("Song-Beverly Act"), and a fifth cause of action for fraudulent inducement - concealment.

GM moves to dismiss the action on the ground that Noe is a member of a class in which a class action settlement was approved in the United States District Court for the Eastern District of Michigan ("Michigan District Court"), Case No. 2:20-cv-13256 TGB-CI (the "Class Action"). GM contends that Noe failed to opt out of the class settlement, that she is therefore bound by its terms, and that the class settlement fully resolves her claims in this action. Plaintiff opposes the motion.

GM's Request for Judicial Notice

GM's motion is supported by a declaration of counsel (Caceres Decl.) and a request for judicial notice, asking the Court to take judicial notice of (a) a September 26, 2024 order of the Michigan District Court in the Class Action granting preliminary approval of the settlement ("Preliminary Order"), which also sets the procedures and deadlines for notice to class members of the settlement, and for class members to object to the settlement and/or opt out of the settlement (RJN Exh. A), (b) a document Caceres declares is an "Exclusion Report" which he states was in the Class Action on May 23, 2025, and which he indicates is a list of class members who opted out of the settlement, and (c) a December 22, 2025 order of the Michigan District Court granting final approval of the settlement ("Final Order"). Exhibit C to the Caceres Declaration, however, is not a copy of the December 22, 2025 Final Order but instead another copy of the Preliminary Order. The Court **denies** the request for judicial notice of the Final Order not attached to the pleadings.

The Court **grants** GM's request for judicial notice of the Preliminary Order (Carceres Exh. A) subject to the applicable limitations on the nature and scope of judicial notice under the case law. (Evid. Code § 452(d); *Aixtron, Inc. v. Veeco Instruments Inc.* (2020) 52 Cal. App. 5th 360, 382, superseded on other grounds as stated in *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632; *Shine v. Willliams Sonoma Inc.* (2018) 23 Cal.App.5th 1070, 1076-1077 [judicial notice of prior judgment for ruling on demurrer]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148 ["[E]ven though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action."].) The Court cannot take judicial notice of the Final Order without having a copy of the Final Order and without proof a copy of the Final Order was served on Plaintiff's counsel with GM's request for judicial notice. It appears from the filing that a copy was not so served.

The Court **denies** GM's request for judicial notice of the Exclusion Report (Caceres Exh. B), as GM asks the Court to take judicial notice of the truth of the contents of that report; namely, that Plaintiff in this case failed to opt out of the proposed class settlement. (*Aixtron, Inc., supra,* 52 Cal.App.5th at 382 [court " 'cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact.' [Citation omitted.]"]; *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [court takes judicial notice of the existence of a filed pleading but not the truth or interpretation of the contents to the extent reasonably disputable].) The Court could, **at most**, take judicial notice of the fact the list titled "Exclusion Report" was filed in the Class Action, but the Court **declines** to do so. The face of the document **does not bear any indication that the document was in fact filed with the Michigan District Court in the Class Action**. In particular, unlike the Preliminary Order, there is no filing information located at the top of the Exclusion Report showing the case number, filing date, and other filing information, such as the ECF number of the filing. Further, the mere fact the Exclusion Report was filed is irrelevant to the determination of the motion to dismiss; its sole relevance is that GM claims the contents show the fact Plaintiff failed to opt out. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].)

Issues Regarding the Timeliness of the Opposition and Reply

GM asserts in its reply that the opposition was untimely because it was filed on March 30, 2026, and the hearing date on the motion was set for April 3, 2026. The Court's records in Odyssey reflect the motion was assigned the April 10, 2026 hearing date when it was filed in February, and the Court has no record that the motion was ever set to be heard on April 3. There was a court holiday on March 31, 2026, which meant that the opposition was due nine court days before April 10, 2026, which was March 27, 2026, making the opposition one court day late. (Code Civ. Proc. § 1005(b).) However, GM's reply was due five court days before the hearing on April 3, 2026 and was also filed one court day late on April 6, 2026. (*Id.*) The Court has considered both the opposition and the reply in rendering this ruling.

Motion to Dismiss and Analysis

GM cites the doctrines of *res judicata* and collateral estoppel to support its motion to dismiss the action with prejudice. GM's motion does not identify any statute or the procedural basis on which it brings the motion.

A. Collateral Estoppel and *Res Judicata* Principles

The *res judicata* doctrine has two distinct aspects with different elements, claim preclusion and issue preclusion, and it was not clear which aspect CCCERA contends applies. (*DKN Holdings, LLC v. Faeber* (2015) 61 Cal.4th 813, 824 [noting courts sometimes use *res judicata* "with imprecision"].) "Claim preclusion 'prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.' [Citation omitted.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations omitted.] If claim preclusion is established, it operates to bar relitigation of the claim altogether." (*Id.* at 824 [emphasis added].) The claim preclusion aspect of *res judicata* prevents piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 897.)

"Issue preclusion differs from claim preclusion in two ways. First, issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues. Second, unlike claim preclusion, issue preclusion can be raised by one who was not a party or privy in the first suit. [Citations omitted.] . . . . In summary, issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. [Citations omitted.]" (*DKN Holdings, LLC, supra,* 61 Cal.4th at 824-825 [emphasis added, citing, among others, *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 342-343].) The Court can decline to apply collateral estoppel where public policy dictates a different result. (*See Lucido, supra*, 51 Cal.3d at 342-343.)

The Court in *McCubbrey v. Boise Cascade Home and Land Corp.* (N.D. Cal. 1976) 71 F.R.D. 62 cited by Plaintiff in her opposition recognizes the principles of *res judicata* apply to a final order approving a class action settlement. (*Id.* at 72-74.) The Court held that it had jurisdiction over members of the class who were served by mail and who are within the class certified by the Court in the action, and the Court rejected the argument that the fact a class member allegedly did not receive the notice relieved the member of the *res judicata* effect of the final order approving the class settlement. (*Id*.) Though that decision is not binding on the Court in this case, the Court addresses the decision given Plaintiff's reliance on it, and the fact the case is at least persuasive authority on the issues regarding class certification, notice, and opt out in a class settlement approved by in federal court.

B. <u>Procedural Issues Regarding the Motion and Inadequacy of Proof to Support Dismissal</u>

GM does not cite any provision of the Code of Civil Procedure or California Rule of Court under which its motion to dismiss is brought.

1. <u>Possible Statutory Bases for the Motion</u>

Code of Civil Procedure § 581 authorizes the Court to dismiss an action, but the circumstances in which dismissal is authorized under that statute are not present here.

Plaintiff cites the decision *Rheinhart v. Nissan North America, LLC* (2023) 92 Cal.App.5th 1016, which addressed the validity of a settlement agreement and waiver of a vehicle lessee's remedy for repurchase or replacement of a defective vehicle. The Court notes that Nissan sought to establish its right to dismissal of the plaintiff's post-settlement Song-Beverly Act action in that case by a <u>motion for summary judgment</u>, an evidentiary motion. Motions for summary judgment have extensive requirements not met by the current motion, including the requirement that the motion be supported by a separate statement of material facts and that the opposing party be given at least 81 days' notice of the motion, extended based on the manner of service. (Code Civ. Proc. §§ 437c(a)(2) and 437c(b)(1).)

The motion could be interpreted as a motion for judgment on the pleadings under Code of Civil Procedure § 438. A motion for judgment on the pleadings may be granted in favor of a defendant where the court lacks jurisdiction over the subject of the cause of action or the action as a whole or if the complaint in its entirety or a particular cause of action fails to state facts sufficient to state a cause of action. (Code Civ. Proc. §§ 438(c)(1)(B) [motion by a party] and

438(c)(3)(B) [court's own motion].) A motion for judgment on the pleadings is generally treated like a demurrer. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"].) (*See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].)

"[I]t is well established a trial court may take notice of an earlier judgment in deciding whether to sustain a demurrer on res judicata grounds." (*Kirkpatrick v. City of Oceanside* (1991) 232 Cal.App.3d 267, 281 [citing *Carroll v. Puritan Leasing Co.* (1978) 77 Cal.App.3d 481, 486].) "The court may sustain a demurrer on claim preclusion grounds '[i]f all of the facts necessary to show that the action is barred are within the complaint or subject to judicial notice . . . .' [Citation omitted.]" (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1190-1191 [quoting *Carroll v. Puritan Leasing Co., supra,* 77 Cal.App.3d at 485].)

2. <u>Improper and Lack of Sufficient Basis for Motion for Judgment on the Pleadings</u>

GM contends that both aspects of the res judicata doctrine bar Plaintiff's continued litigation of her claims based on the settlement in the Class Action. Plaintiff contends the motion is improper as a motion for judgment on the pleadings because GM did not raise *res judicata* or collateral estoppel as an affirmative defense in its answer.

The lack of such an affirmative defense in the answer does not preclude the Court from granting judgment on the pleadings, because in ruling on a motion for judgment on the pleadings by a defendant, like a demurrer, the Court considers only the pleading being challenged and matters subject to judicial notice, including judgments or orders that may show the claim is barred by *res judicata* or collateral estoppel. (*Hughes v. Western MacArthur Co.* (1987) 192 Cal.App.3d 951, 957-958 ["[O]n a motion for judgment on the pleadings, the complaint cannot be attacked by reference to matters set forth in the answer. [Citations omitted.] Viewing the complaint in isolation, we must determine whether it states a cause of action. [Citation omitted.]"].) The Court does not reach Plaintiff's arguments regarding GM's alleged waiver of *res judicata* or collateral estoppel defenses for failure to assert them in its answer to the 2AC filed in December 2025.

Plaintiff also contends, however, GM's motion is dependent upon extrinsic evidence outside the scope of the allegations of the 2AC and matters outside the proper scope of judicial notice. Plaintiff contends GM cannot demonstrate a sufficient basis to dismiss the action without such extrinsic evidence. The Court agrees.

The Preliminary Order provides the Court with evidence subject to judicial notice that the Michigan District Court certified a class of Chevrolet Bolt vehicle owners and lessees which encompassed Plaintiff based on her allegations in the 2AC. The Preliminary Order defines the class subject to the Class Action settlement to include persons who purchased or leased a 2019 model year Chevrolet Bolt "who have not received a buyback of their vehicle" from GM or a GM authorized dealer. (Caceres Decl. Exh. A p. 3, ¶ 7.) Plaintiff does not argue that she does not meet the criteria for being a member of the class certified by the Michigan District Court. The Class Action based on its case number was filed before Plaintiff's case was filed in this Court and thus is a "prior" action. Plaintiff does not contest that her claims regarding the Battery Defect in the Vehicle is the same type of defect subject to the claims in the Class Action. There appears to be no dispute, based on the time of filing of the Preliminary Order, that Plaintiff instituted her lawsuit before the notice of the proposed class settlement was issued and served on class members.

GM contends the settlement resulted in a "final judgment on the merits" based on the entry of the Final Order approving the class settlement. <u>The Court does not have that evidence before it on the current state of the record as the Final Judgment is not attached to the RJN or the Caceres Declaration</u>.

Plaintiff mischaracterizes the holding in *McCubbrey, supra*, asserting that the case stands for the proposition that "**an individual filing suit prior to any class action settlement notice, and prior to the end of the exclusionary period, is not bound by the class adjudication**." (Opp. p. 1, citing *McCubbrey, supra,* 71 F.R.D. at 67 [bold in original].) (*See also* Opp., Argument 3, p. 3 ["Plaintiff Filing Suit Prior to the Date of the Class Action Settlement Effects Opt-Out"].) The

McCubbrey case does not stand for those general propositions.

Rather, the Court explained: "Four of the respondents sought to be enjoined on the present motion had instituted suits against Boise Cascade prior to receipt of the Notice detailing the proposed settlement of the class suit. The issue raised by this aspect of Boise Cascade's petition is whether the *McCubbrey* notice adequately advised this group of respondents of their options under the contemplated settlement and the consequences of their alternative actions." (*Id.* [emphasis added].) The Court did not make a general holding that members of a class subject to a class action settlement who filed individual suits before the class settlement notice is served are not bound by the settlement. Rather, the Court evaluated the specific contents of the notice of the class action settlement that was sent to the class members who had filed individual suits before the class settlement notice was served to determine if the settlement notice met due process standards under the U.S. Supreme Court decision in *Mullane v. Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 314. (*Id*. at 67.)

The Court in *McCubbrey* evaluated whether the class settlement notice explained to those members "the options available to class members and the consequences of their elections" in a manner "detailed with sufficient clarity to afford absent members a realistic opportunity to evaluate alternative options available to them." (*Id*.) The Court held:

> In the present case, the Notice of the proposed settlement of the *McCubbrey* suit satisfied due process criteria as to the vast majority of class members; however, as to the small group of individuals engaged in ongoing litigation against Boise Cascade, we must conclude that the Notice failed to perform its function of providing an adequate basis for informed decisionmaking. Nothing in the detailed, 29-page Notice would alert even a careful reader that he must satisfy the exclusion requirements or suffer the consequence of permitting his ongoing litigation to evaporate. The language of Option 1 (which respondents "elected" by failing to exclude themselves

> from the class) suggests that inaction will result in barring future litigation, not automatic termination of present suits. Nor does the language of Option 2 (specifying the opt-out procedure) advise class members that they must satisfy exclusion requirements to maintain the viability of independent litigation. From these serious omissions, we are compelled to conclude that the Notice did not provide respondents engaged in separate suits against Boise Cascade with adequate notice of their options under the proposed *McCubbrey* settlement.

(*Id.* at 67-68 [emphasis added].) The holding in the case was not that any individual who files suit before a class settlement notice was served is not bound to the class settlement. Rather, the implicit holding was that such an individual would be bound if the individual was given proper and sufficient notice consistent with due process regarding the effect of the settlement on their action and the consequences of failing to opt out. The Court in *McCubbrey* merely concluded the notice served in that case did not adequately advise the ten individuals who had suits pending when the class settlement notice was issued of the effect of the class settlement and the consequences that would result for their individual actions if they did not opt out of the settlement. For that reason, the Court concluded they were not bound to the class settlement even though they did not opt out. (*Id.* at 68-69.)

The Court's additional holding in *McCubbrey* that, as to three individuals who filed suit after the class settlement notice was served but before the end of the exclusionary period, those individuals had adequately indicated an intent to opt out of the class settlement despite the failure to follow the specific opt out procedures in the notice has no bearing here. Plaintiff in this case had filed her lawsuit long before the class settlement notice was served. (*Id.* at 69-72.) The Court did not hold that filing suit before the class settlement notice effects an opt out. (*Id.* at 69-72.) To the contrary, the Court's analysis indicates that as to a plaintiff who filed suit before the class settlement occurred and before the class settlement notice was given, the settlement would be binding on that party (1) if the notice of the class settlement provided adequate information regarding the settlement and the consequences of not opting out on that party's pending suit, and (2) the party failed to take the required steps to opt out. (*Id.* at 67-69, 72-74.) The Court's holding as to the third group of class members in *McCubbrey*, those who filed suit after the end of the exclusionary period for opting out of the class settlement, is not relevant here for the same reason. (*Id.* at 72.)

Nevertheless, the record on this motion, even if interpreted as a motion for judgment on the pleadings, is inadequate to grant GM's motion. The Preliminary Order does not include a copy of the notice of the class settlement that was to be served on class members, demonstrating it met due process standards to advise Plaintiff of the consequences of the settlement on her pending litigation. The Court has no evidence from a competent declarant proving the fact of, and method and manner of, service of the class settlement notice on Plaintiff and/or her counsel, nor could the Court consider that evidentiary showing on a motion for judgment on the pleadings as such evidence would not be within the proper scope of judicial notice. The Court does not have documents subject to judicial notice that Plaintiff failed to opt out of the class settlement. The inadequacy of the record and procedural limitations on a motion for judgment on the pleadings mean that GM's motion to dismiss must be **denied** on these grounds.

C. *Rheinhart* and Unwaivable Remedies under the Song-Beverly Act

Plaintiff also argues that the class action settlement is void and unenforceable to the extent it forces Plaintiff to waive her unwaivable rights to the repurchase or replacement remedies under the Song-Beverly Act or other unwaivable remedies under the statute based on *Rheinhart v. Nissan North America, Inc.* (2023) 92 Cal.App.5th 1016, 1027.) The Court in *Rheinhart* held that on the summary judgment record before the Court, "the Release contravened Rheinhart's right to elect the [Song-Beverly] Act's substantive remedies of replacement or restitution. On that basis, it is void as against public policy, and Nissan is not entitled to summary judgment on grounds the release bars Rheinhart's claims as a matter of law." (*Id.* at 1036.) The Court nevertheless "emphasize[d] that [its] holding is not that section 1790.1 precludes settlement and release of claims under the Act." (*Id.*) The Court also stated it "did not disagree" with other decisions that have stated a vehicle buyer is not prevented from settling for less than the full purchase price of the vehicle or that Civil Code § 1790.1 means that no settlement of Song-Beverly Act claims is enforceable. (*Id.*)

The Court does not have before it the class settlement agreement. The Court cannot infer the terms of the settlement or how it applies to Plaintiff here, and what remedies, if any, Plaintiff is required to waive under the Song-Beverly Act pursuant to the class settlement assuming she did not opt out of the settlement after service of a notice of class action settlement that meets due process standards. The Preliminary Order refers to the establishment of a qualified settlement fund, but without the terms of the settlement and evidence of its effect on Plaintiff's claims, the Court cannot determine whether or not the class settlement effects a void or unenforceable waiver of Plaintiff's unwaivable rights under the Song-Beverly Act. The Court therefore does not reach the merits of Plaintiff's arguments regarding *Rheinhart* and the underlying class settlement.

4. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: MACHADO, ELVECIO
****TENTATIVE RULING:****

Before the Court is Plaintiff Elvecio Machado and Plaintiff Tatiana Arambulo (collectively, “Plaintiffs”)’s motion for leave to file First Amended Complaint. The motion is opposed by Defendant Gino Caruso and Defendant Laudelino Caruso (collectively, “Defendants”). Defendants are in pro per.

Plaintiffs seek to substitute Cars To Go, Inc. for Doe Defendant No. 1 as well as add two new causes of action for Intentional Interference with Contractual Relations and Common Law Trademark Infringement against Cars To Go, Inc and existing Defendants Laudelino Caruso and Gino Caruso.

For the following reasons, the motion is **granted**. The First Amended Complaint is deemed filed as of April 10, 2026. Plaintiff is directed to file a new copy of the

First Amended Complaint by April 17, 2025.

Analysis

A trial court has discretion to allow amendment of any pleading at any stage of the proceedings. (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081 [policy of "great liberality" in permitting amendments to pleadings at any stage of the proceedings].) Regardless of the stage of the proceeding, trial courts are to liberally permit such amendments, provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489-490.)

Compliance with CRC 3.1324(a) and (b). A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. (CRC 3.1324(a).)

A motion for leave to amend a complaint must also be accompanied by a declaration that explains: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)

The Court notes that Plaintiffs' motion fails to technically comply with the requirements of California Rule of Court 3.1324(a)(3) as it does not "state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located," though the declaration of Sarah Okdie does appear to satisfy the requirements of subsection (b). That said, Defendants did not object on this ground and the Court is not inclined to deny the motion on this basis.

Delay. First, Defendants oppose the motion on the grounds of unreasonable delay. They argue that "[t]he facts underlying the amendment were known well before the filing of Plaintiffs' original Complaint." (Opp. at 3:17-18.) However, the Declaration of Sarah Okdie states that her firm "engaged in investigations into a separate entity used to syphon proceeds from Cars To Go Towing, Inc." and that "[o]no or about October 13, 2025, these investigations uncovered that

Jonathan Caruso, is the chief executive officer, chief financial officer and secretary of a company called Cars To Go, Inc." (Okdie Decl. at ¶¶ 12, 14.) Ms. Okdie further testifies that on or about December 10, 2025 her investigations "uncovered a video of the regular meeting of the Planning Commission conducted by the City of Concord on February 1, 2022, in which Laudelina Caruso and Jonathan Caruso requested a Use Permit to allow Cars To Go, Inc. to operate a tow dispatch facility at the Cloverdale Location." (*Id*. at ¶ 18.) Plaintiffs filed the instant motion shortly thereafter on December 29, 2025. The Court cannot conclude that there was unreasonable delay.

Prejudice. Next, Defendants argue that allowing the amendment would substantially prejudice them as it would require additional discovery, increase litigation costs, delay resolution of the case, and require alteration of defense strategy.

Prejudice in this context is where amendment would result in, among other things, necessitating a continuance to allow the defendant to depose new witnesses, a delay of trial, along with a loss of critical evidence, added costs of preparation, or increased burden of discovery. (*Magpali v. Farmers Group, Inc*. (1996) 48 Cal.App.4th 471, 486-488; see also *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Here, Defendants have not identified cognizable prejudice—their conclusory recitation of the elements of substantial prejudice is insufficient. (See also *Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 945 [it is irrelevant that the new legal theories are introduced as long as the proposed amendments relate to the same general set of facts].) The Court declines to deny the motion on this ground.

Futility. Defendants also oppose the motion for leave to amend on the grounds that Plaintiffs proposed claims fail for lack of causation. This argument is not supported by any cause law or specific reference to the proposed additional causes of action. The Court declines to deny the motion on this ground.

Bad Faith. Finally, Defendants argue that "[t]he timing of Plaintiffs' motion—on eve of trial—suggests a tactical attempt to gain leverage in a case where they clearly have none, rather than a good-faith effort to plead meritorious claims." (Opp. at 4:10-12.) The Court notes that trial in this case is over six months away. The Court declines to deny the motion on this ground.

The motion is **granted**.

5. 9:00 AM CASE NUMBER: C24-01208
CASE NAME: DOMONIQUE MEJIA VS. DA'TONJA RAMIREZ
HEARING ON DEMURRER TO: TO 1ST AMENDED COMPLAINT | CONTD FROM 3/27/26
FILED BY: MAINSTREAM ESCROW, INC.
TENTATIVE RULING:*

Before the Court is a demurrer by defendant Mainstream Escrow, Inc. to the first amended complaint. For the reasons set forth, the Court rules as follows: (a) general demurrers to 1st, 2nd, 3rd, 6th, 7th, and 8th causes of action – **sustained**, without prejudice to Plaintiff filing a motion for leave to amend to add these or other causes of action; (b) general and special demurrers to 4th and 5th causes of action – **overruled**; (c) special demurrers to 10th, 11th, 12th, and 13th causes of action – **sustained, with leave to amend**, as set forth below; and (d) demurrer to prayer for punitive damages - **overruled**.

Background

On May 6, 2024, plaintiff Dominique Mejia filed a complaint against Da'Tonja Ramirez, Mainstream Escrow, Inc. and other defendants arising out of a grant deed which was purportedly executed by her granting sole ownership to a property in Hercules in which she and defendant Ramirez held title as joint tenants. Plaintiff alleges Ramirez and other defendants, now including Mainstream, conspired to remove Mejia's interest in the property as part of a refinance transaction by obtaining and recording a fraudulent grant deed transferring title to Ramirez alone, a grant deed Mejia denies she executed.

Mainstream filed a motion for judgment on the pleadings directed to the fourth and fifth causes of action of the original complaint, which the Court granted, with leave to amend. Plaintiff filed her first amended complaint ("FAC"). Mainstream demurs to all causes of action of the FAC and to the prayer for punitive damages.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v.*

Mission Community Hospital (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) A demurrer on that ground should not be sustained unless the pleading "is so incomprehensible that a defendant cannot reasonably respond" because "ambiguities can reasonably be clarified under modern rules of discovery. [Citation omitted.]." (*Id.*) "Ultimately, the complaint is sufficient if 'the adversary has been fairly apprised of the factual basis of the claim against him.' [Citations, internal quotations omitted.]" (*Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 810.)

Analysis

A. **General Demurrers to 1st, 2nd, 3rd, 6th, 7th and 8th Causes of Action as Exceeding Scope of Leave to Amend on Motion for Judgment on the Pleadings**

Plaintiff's original complaint alleged only two causes of action against Mainstream for negligence (4th C/A) and gross negligence (5th C/A). The Court granted Mainstream's motion for judgment on the pleadings with leave for Plaintiff to amend to try to state facts sufficient to allege those causes of action as the claims as pled failed to allege facts to support the existence of a duty owed by Mainstream to Plaintiff. (11/6/2025 Order After Hearing [adopting October 17, 2025 Tent. Rul.].)

Plaintiff alleges six new causes of action against Mainstream, including (1) fraud, deceit and misrepresentation (1st C/A), (2) intentional interference with contractual relationship (2nd C/A), civil conspiracy (3rd C/A), breach of fiduciary duty (6th C/A), aiding and abetting fraud/forgery (7th C/A), and negligent supervision, hiring, training and retention (8th C/A). The order granting the Mainstream motion for judgment on the pleadings with leave to amend did not grant Plaintiff a general right to amend her complaint to allege new causes of action against Mainstream. (11/6/2025 OAH.) The order granting leave to amend the negligence and gross negligence causes of action, the only two causes of action pled against Mainstream, indicated that leave to amend was granted because "Plaintiff may be able to allege additional facts to support the existence of a duty or to support the application of the exception by alleging facts showing there was clear evidence of fraud known to Mainstream that indicated the grant deed giving title solely to Ramirez was forged or fraudulent." (11/6/2025 OAH p. 9.) The Court granted Plaintiff leave to amend the causes of action alleged (negligence and gross negligence) to add facts regarding Mainstream's <u>knowledge of a fraud or forgery by others</u> which might state facts sufficient to allege the element of <u>duty</u> which was missing from those causes of action.

" 'Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. [Citation.] The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.' [Citation omitted.]" (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 [quoting *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023 cited by Mainstream].) (*See also Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329-1330 [stating "It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all," and holding the Court may strike the new cause of action alleged as not " 'drawn or filed in conformity with . . . an order of the court.' (Code Civ. Proc., § 436, subd. (b).)"].)

In *Zakk v. Diesel, supra*, the Court sustained demurrers to plaintiff's claims for breach of an oral contract on the ground of the statute of frauds and that the pleading did not allege sufficient facts to support an estoppel from defendants asserting the statute of frauds. (*Zakk v. Diesel, supra,* 33 Cal.App.5th at 439-442.) The plaintiff then filed a third amended complaint, adding a cause of action for promissory estoppel. The trial court sustained the demurrer to the promissory estoppel cause of action on the ground that it was added without leave of court and was outside the prior ruling granting leave to amend after the demurrer to the second amended complaint was sustained. (*Id.* at 445-446.)

Relying on the *Harris v. Wachovia* decision, the Court of Appeal held the trial court properly sustained the demurrer to the promissory estoppel cause of action because plaintiff had not obtained leave to amend to add that new cause of action, rejecting the plaintiff's argument that adding that new cause of action responded to the trial court's concerns regarding the statute of frauds as promissory estoppel is not subject to the statute of frauds. (*Id.* at 456.) Affirming the trial court's order, the Court of Appeal explained, "The granting of leave to amend after a demurrer is sustained on one ground does not give the plaintiff a license to add any possible cause of action that might not be subject to dismissal on that ground. Otherwise, there would be virtually no limitation on amendments following the sustaining of a demurrer. [¶] Because Zakk did not obtain leave from the trial court to amend his complaint to add a promissory estoppel cause of action, we affirm the judgment of dismissal with respect to that cause of action." (*Id.*)

Plaintiff does not address the decisions limiting the scope of leave to amend after a demurrer is sustained or judgment on the pleadings granted. Plaintiff argues unpersuasively that she has merely alleged additional facts to show that there was "clear evidence of fraud known to Mainstream" to support a duty by Mainstream to Plaintiff to state a negligence or gross negligence claim. (Opp. p. 8, ll. 7-11.) That is not the case.

Rather, Plaintiff now attempts to allege several entirely new causes of action by alleging that Mainstream <u>itself</u> committed fraud or participated in fraud or forgery directly or as a co-conspirator or aider and abetter, that Mainstream intentionally interfered with Plaintiff's contractual relationship, and that Mainstream breached <u>fiduciary</u> duties it allegedly owed to Plaintiff. The new causes of action alleged against Mainstream as the 1st, 2nd, 3rd, 6th, and 7th causes of action are outside the scope of leave to amend granted in the Court's November 6, 2025 order after hearing sustaining the demurrer to the negligence and gross negligence claims in the original complaint. Plaintiff did not seek leave to amend to add those causes of action.

The cause of action for negligent supervision, hiring, training, and retention (referred to as "negligent supervision" for convenience) is closer, but that cause of action is also still outside the scope of the claims alleged for negligence and gross negligence in the original complaint to which the Court granted the motion for judgment on the pleadings and leave to amend. "[A]n employer may be liable to a third party for negligently hiring or retaining an unfit employee. [Citation omitted.] Negligent hiring/retention is a theory of direct liability—not vicarious liability. In a negligent hiring/retention cause of action, the neglect alleged is not that of the employee. The neglect pleaded is that of the employer itself. [Citation omitted.] [¶] An employer may be negligent because it has reason to know the employee, because of his qualities, '[]is likely to harm others in view of the work or instrumentalities entrusted to him. If the dangerous quality of the [employee] causes harm, the [employer] may be liable under the rule that one initiating conduct having an undue tendency to cause harm is liable therefor. . . . [¶] . . . An [employee] . . . may be incompetent because of his reckless or vicious disposition, and if [an employer], without exercising due care in selection, employs a vicious person to do an act which necessarily brings him in contact with others while in the performance of a duty, he is subject to liability for harm caused by the vicious propensity. . . . [¶] One who employs another to act for him is not liable . . . merely because the one employed is incompetent, vicious, or careless. If liability results it is because, under the circumstances, the employer has not taken the care which a prudent man would take in selecting the person for the business in hand. . . . [¶] Liability results . . . not because of the relation of the parties but because the employer antecedently had reason to believe that an undue risk of harm would exist because of the employment. . . .[]' [Citation, internal quotation marks omitted.]" (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal. App. 5th 1142, 1163-1164.)

The negligent supervision claim invokes standards of care based on

Mainstream's role as an employer, which is different from the general duty of care Plaintiff alleged in the original causes of action for negligence or gross negligence, in which Plaintiff alleged essentially that Mainstream's employees were negligent by allowing other defendants to use or record a forged deed to convey Plaintiff's title to the property, with Mainstream's liability arising from the employee's conduct based on vicarious liability. For that reason, the negligent supervision cause of action now alleged is also outside the scope of the leave to amend granted by the Court in granting the motion for judgment on the pleadings on the fourth and fifth causes of action of the original complaint.

The demurrers to the 1st, 2nd, 3rd, 6th, 7th, and 8th causes of action are **sustained** on this ground. If Plaintiff wishes to pursue these additional causes of action, Plaintiff may make an appropriate motion for leave to amend to assert them. Given this ruling, the Court will not address the merits of the sufficiency of the factual allegations supporting these new causes of action to state causes of action against Mainstream.

B. General and Special Demurrers to 4th and 5th C/As

California does not recognize gross negligence as a common law cause of action distinct from common law negligence. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 552, fn. 3.) "As a degree of negligence, '[g]ross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages.' [Citation omitted.]" (*Id.*) Whether the claim is for negligence or gross negligence, duty, breach of duty and causation are essential elements of a negligence claim. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) A claim for gross negligence is pled by also alleging the defendant's conduct involved either "want of even scant care" or "extreme departure from the ordinary standard of conduct." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754-755 [internal quotation marks omitted].)

The prior ruling on Mainstream's motion for judgment on the pleadings detailed the applicable law on the duties owed by an escrow company which are generally limited to the parties to the escrow, not third parties. The Court reiterates the applicable law.

An escrow holder owes duties to the parties to an escrow, but not to nonparties to the escrow even if the nonparty claims an interest in the transaction. (*Summit Financial Holdings, Ltd. v. Continental Lawyers Title Co.* (2002) 27 Cal.4th 705, 711-716.) The escrow holder's duties are limited under the case law; "[a]bsent clear evidence of fraud, an escrow holder's obligations are limited to compliance with the parties' instructions. [Citation omitted.]" (*Id.* at 711.)

In *Summit*, the plaintiff alleged claims of both breach of fiduciary duty and negligence. Plaintiff Summit was not a party to the escrow for the refinance of certain real property which was subject to a deed of trust securing a note to Talbert. Talbert assigned his interest in the note to Summit. Neither Talbert nor Summit were parties to the escrow. The escrow holder complied with instructions from the property owner, who was a party to the escrow, to pay the refinance proceeds to Talbert to satisfy the note, even though the escrow holder, in that case the title company that also had prepared a preliminary title report, knew there was a recorded assignment of the note and deed of trust from Talbert to Summit. (*Id.* at 708-710.) Summit was not paid the proceeds of the note repayment by Talbert, and Summit sued the escrow company, alleging the escrow company was negligent in paying Talbert instead of Summit.

Summit argued that because the escrow company knew about the assignment of the note, the escrow company "breached both a *fiduciary* duty and a *tort* duty to Summit" when it paid Talbert. (*Id.* at 711 [italics in original].) In addressing the claimed fiduciary duty, Summit relied on the case *Kirby v. Palos Verdes Escrow Co.* (1986) 183 Cal.App.3d 57, a case the Court of Appeal in *Summit* noted "appears to be the only California case that holds an escrow holder can be liable to strangers to an escrow for injuries allegedly caused by the escrow holder following it is principals' instructions." (*Id.* at 712-713.) The California Supreme Court agreed with the Court of Appeal's analysis in *Summit* that *Kirby*'s analysis was flawed and overruled *Kirby* in part, because it improperly extended cases which held the escrow company is bound to observe the effect of an assignment when the assignment is made by a party to the escrow to circumstances in which the assignment involves nonparties to the escrow. Since *Summit* also involved an assignment by nonparties to the escrow, the Court held the escrow company had no fiduciary duty to the nonparties. (*Id.* at 714-715.) (*See also Alereza v. Chicago Title Co.* (2016) 6 Cal.App.5th 551, 553-554, 560 [affirming judgment of nonsuit for title company acting as escrow holding on sole issue of whether escrow owed a legal duty of care to plaintiff under *Biakanja* factors, where plaintiff was not a party to the escrow or named as a third party beneficiary of the escrow in the escrow instructions, stating "Even though Alereza provided the purchase funds and provided a note secured by his residence, the escrow completed a sale that did not involve Alereza personally as buyer or seller. Alereza was not a party to the escrow instructions nor was he a third party beneficiary of the transaction."].)

The Court in *Summit* also held there was no duty owed by the escrow holder to the nonparty to the escrow in that case under the *Biakanja* test, noting, among other reasons, that the transaction was not intended to affect or benefit Summit and that any impact the transaction had on Summit was "collateral to the primary purposes of the escrow." (*Summit, supra,* 27 Cal.4th at 715-716 [addressing the factors set forth in *Biakanja v. Irving* (1958) 49 Cal.2d 647, 650 for determining whether a tort duty in negligence is owed to a third party not in privity].) (*See also Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 840, fn. 8 ["In a variety of contexts, California courts have held that a professional or other business entity that enters into a contract to provide services to an individual or entity does not owe a tort duty of care to a third party with respect to an economic loss allegedly incurred by the third party when recognition of such a duty of care to the third party would create a potential conflict of obligations for the professional or business entity in light of its responsibility to the individual or business with which it has contracted. [Citations omitted.]," citing *Summit*, among other decisions].)

An escrow holder's limited duty is to comply with the escrow instructions, and it is not <u>generally</u> required to disclose suspicious facts or circumstances. (*Lee v. Title Ins. & Trust Co.* (1968) 264 Cal.App.2d 160, 162–163.) The one limited exception is if there is "<u>clear evidence of fraud</u>." (*Summit, supra,* 27 Cal.4th at 705, 711 [emphasis added].) (*See also Lee v. Title Ins. & Trust Co., supra*, 264 Cal.App.2d at 162.)

In *Lee v. Title Ins. & Trust Co., supra,* 264 Cal.App.2d 160, the plaintiff sued an escrow holder alleging that the escrow holder knew other defendants were defrauding the plaintiff but failed to inform the plaintiff. The Court of Appeal upheld the trial court's order sustaining a demurrer without leave to amend, stating "it is generally held that no liability attaches to the escrow holder for his failure to do something not required by the terms of the escrow or for a loss incurred while obediently following his escrow instructions." (*Id.* at 162-163.) (*See also Markowitz v. Fidelity Nat. Title Co.* (2006) 142 Cal.App.4th 508, 528 ["When an escrow holder knows a party to the escrow is relying on it for protection as to facts learned by the escrow holder, the escrow holder can be held liable if it does not disclose those facts to the party. [Citation omitted.] Having had little or no contact with Donald, who was not a party to the escrow, Fidelity would have had no reason to know or expect that Donald was looking to Fidelity for protection as to facts learned by it. [Citation omitted.]"].)

Relevant to the negligence and gross negligence causes of action, Plaintiff summarizes the new allegations she contends allege that there was "clear evidence of fraud" known to Mainstream in her opposition. She contends the following new factual allegations show "clear evidence of fraud" that bring this case into the exception stated in *Summit*: (1) Mainstream had actual or constructive notice that title to the Property was held by Mejia and Ramirez as joint tenants (FAC ¶ 20; (2) Mainstream reviewed title documents showing Mejia's ownership interest, including an existing recorded deed of trust signed by Mejia (FAC ¶ 20); (3) Mainstream "processed" a grant deed conveying Mejia's title without Mejia's involvement in the escrow with an out of state notarization for a California co-owner that was a "red flag" (FAC ¶¶ 21, 22, 25); and (4) Mainstream failed to verify Plaintiff's consent to the grant deed (FAC ¶ 25). (Opp. p. 8, ll. 12-19.) In paragraph 50, Plaintiff reiterates her allegations that Mainstream breached its duty of care by processing the grant deed notarized out of state and facilitating "the recording of the forged" grant deed, and in doing so, failed to (1) independently verify the grant deed though Ramirez was a California resident; (2) contact Mejia despite "actual knowledge she was a record title holder"; (3) compare "known signatures" of Mejia to the grant deed to verify Mejia's signature; and (4) comply with "industry standards" for signature verification and its own internal standards and procedures. (FAC ¶

50.)

While the each individual fact alleged may not alone demonstrate Mainstream had "clear evidence of fraud," the Court concludes that taken together and coupled with the copies of the existing recorded deed of trust signed by Mejia which Plaintiff alleges Mainstream reviewed and the grant deed notarized in Georgia, Plaintiff has alleged facts sufficient to at least make whether Mainstream had "clear evidence of fraud" a question of fact not resolvable on demurrer as to the negligence and gross negligence causes of action. *Alereza, supra*, for example was decided by a nonsuit in favor of the defendant at trial. (*Alereza, supra,* 6 Cal.App.5th at 553-554.)

Mainstream's knowledge that Mejia was a record title holder and that the effect of the grant deed was her relinquishment of title alone are not enough to meet the "clear evidence of fraud" standard in *Summit*. (*Compare to Summit, supra,* 27 Cal.4th at 711-716, in which escrow knew from recorded documents that a note and deed of trust had been assigned to a third party but followed the instructions from the parties to the escrow to disburse the sale proceeds to the original note/trust deed holder, for which the Court held escrow had no liability].)

The fact that Mejia's signature was notarized by an out of state notary coupled with Mejia's relinquishment of title by the grant deed also do not present clear evidence of fraud. The notary statutes contemplate that documents may be taken outside the state and acknowledged before an out- of-state notary public, with the acknowledgement accepted in California. (Civ. Code § 1182.) In addition, Plaintiff alleges that Mainstream was told Mejia was vacationing in Georgia or had moved there as the explanation for the Georgia notarization. (FAC ¶ 57.)

Nevertheless, Plaintiff attaches a copy of the existing deed of trust recorded in November 2021 signed by Mejia which was to be reconveyed as part of the new refinance transaction, and she points to the inconsistency between the "known" signature on that deed of trust and the grant deed notarized in Georgia conveying Mejia's interest. (FAC Exhs. 1 [Georgia grant deed] and 3 [2021 deed of trust].) Plaintiff alleges Mainstream reviewed those documents as part of the disputed transaction. (FAC ¶ 20.) Mejia's signatures are not similar on the two documents. (*Compare* FAC Exhs. 1 and 2) Those facts coupled with the out-of-state execution and notarization of a grant deed by which Mejia was relinquishing her title interest to another only a few months after a refinance transaction completed in November 2021 allege facts sufficient to make it a factual question whether the information before Mainstream was "clear evidence of fraud." The Court notes Plaintiff also alleges in paragraph 29, incorporated into the two negligence causes of action, that Mainstream itself participated in defrauding Mejia by forging the signature on the grant deed "through negligence or malice and for financial gain." (FAC ¶¶ 29, 44, 53.) An allegation that Mainstream actually participated in the fraud by forging the grant deed that conveyed title to Ramirez alone may well fit within the "clear evidence of fraud" exception in *Summit*.

The Court concludes that for purposes of a demurrer, Plaintiff has alleged sufficient facts to raise a factual question as to whether the combination of facts summarized above with Mainstream's review of the existing trust deed and grant deed where the signatures by Mejia are markedly different constituted "clear" evidence of fraud for the exception to the lack of duty stated in *Summit*. Ignoring clear evidence of fraud may rise to the level of gross negligence as an "extreme" departure from ordinary care in light of the allegations that Mainstream failed to comply not only with industry standards but also its own internal protocols under the circumstances, including with regard to verifying signatures where the documents before Mainstream appear to bear signatures not remotely similar with suspicious circumstances that a few months after the Supreme Lending transaction (November 2021), Mejia had moved or was out of state and transferring her title to Ramirez alone. As gross negligence is a matter of degree, the Court cannot conclude as a matter of law on demurrer that the allegations could not support a finding of gross negligence.

The Court also rejects Mainstream's theory that the allegations do not support that Mainstream's acts or omissions may have been a substantial factor causing Mejia's loss. Substantial factor is the standard for causation under applicable law, such that more than one factor may cause or contribute to the plaintiff's loss. (*Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 968, 969 ["a cause in fact is something that is a substantial factor in bringing about the injury"]; *Yanez v. Plummer* (2013) 221 Cal.App.4th 180, 187 ["A defendant's negligent conduct may combine with another factor to cause harm; if a defendant's negligence was a substantial factor in causing the plaintiff's harm, then the defendant is responsible for the harm; a defendant cannot avoid responsibility just because some other person, condition, or event was also a substantial factor in causing the plaintiff's harm; but conduct is not a substantial factor in causing harm if the same harm would have occurred without that conduct."].)

The Court agrees with Plaintiff that the economic loss rule also does not bar the claim in this case. Plaintiff does not merely allege an "economic" or financial loss. (*Southern California Gas Leak Cases* (2019) 7 Cal. 5th 391, 400 [under California precedent, "liability in negligence for purely economic losses" is " 'the exception, not the rule' "].) (*See also Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 58 ["Recognition of a duty to manage business affairs so as to prevent purely economic loss to third parties in their financial transactions is the exception, not the rule, in negligence law."].) In the *Southern California Gas Leak Cases*, the Court had to decide " if local businesses—none of which allege they suffered personal injury or property damage—may recover in negligence for income lost because of the leak," i.e., "purely economic losses." (*Id.* at 393.) Here, Plaintiff is not alleging a purely monetary loss; she is alleging she lost her real property as a result of Mainstream's acts and omissions. Mainstream cites no case authority in which the loss of real property, particularly residential property which was involved in this case, is considered a purely economic or financial loss such that no duty arises in negligence under the circumstances. (*See, e.g., Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal. App. 4th 463, 475 ["Because land is unique, different locations are not necessarily interchangeable, without evidence showing this to be the case," addressing the presumption that damages are an inadequate remedy for loss of land]; Civ. Code § 3387 ["It is to be presumed that the breach of an agreement to transfer real property cannot be adequately relieved by pecuniary compensation. In the case of a single-family dwelling which the party seeking performance intends to occupy, the presumption is conclusive."].)

Defendant's demurrer to the fourth cause of action refers to the cause of action being time-barred under Code of Civil Procedure § 339. (Dem. p. 4, ll. 21-24.) Mainstream's motion for judgment on the pleadings to these causes of action was based in part on the claims being time-barred, which the Court rejected. (11/6/2025 Order After Hearing [adopting October 17, 2025 Tent. Rul.].) The Court also rejects Mainstream's contention that the amendments to the FAC with regard to the negligence and gross negligence causes of action exceed the scope of the leave to amend granted in the order on the motion for judgment on the pleadings. Mainstream does not make any arguments or cite authorities to support them in its memorandum in support of the demurrer to these two causes of action. (MPA ISO Dem. p. 17, l. 7 – p. 18, l. 16.) Special demurrers for uncertainty are disfavored; the Court finds uncertainty, if any, regarding these causes of action can be addressed through discovery. (*Lickiss, supra,* 208 Cal.App.4th at 1135.)

The general and special demurrers to the fourth and fifth causes of action are **overruled**.

C. <u>Demurrers to Equitable Rescission, Quiet Title, Partition, and Equitable Relief Causes of Action (10th-13th C/As)</u>

Mainstream makes a special demurrer for uncertainty to these four causes of action because it is unclear whether they are directed to Mainstream, as they are alleged against "Defendants." The title of each cause of action does not specify the party or parties against whom they are asserted. Plaintiff responds by stating that though these claims refer to "Defendants," they are alleged against Ramirez only. (Opp. p. 16, ll. 20-25.) There are five named defendants in the action.

At a minimum, the causes of action as pled violate Rule 2.112 of the California Rules of Court. That rule requires that each cause of action identify the party against whom it is asserted if there is more than one defendant (or cross-defendant) named in the action. (Cal. R. Ct., Rule 2.112 subd. (4).) Failure to comply with this requirement of Rule 2.112 supports granting a special demurrer for uncertainty, which Mainstream has made to these causes of action. (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014.)

The special demurrers for uncertainty to the 10th, 11th, 12th, and 13th causes of action are **sustained, with leave to amend.** Any amended pleading shall comply with California Rules of Court, Rule 2.112.)

D. Demurrer to Prayer for Punitive Damages

A demurrer can only be sustained if it disposes of an entire cause of action. (*Daniels, supra,* 246 Cal.App.4th at 1167; *PH II, Inc., supra,* 33 Cal.App.4th at 1682-1683.) " 'There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]. . . . "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." ' [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 163-164.) A motion to strike is the appropriate mechanism to attack a claim for punitive damages. (*Id.* at 164.)

The demurrer to the prayer for punitive damages cannot be sustained based on the foregoing authorities. The demurrer to the prayer for punitive damages is therefore **overruled.**

6. 9:00 AM CASE NUMBER: C24-01947
CASE NAME: DANA DENARDI VS. KEVIN DENARDI
HEARING ON ORDER OF EXAMINATION IN RE: DEBTOR: KEVIN DENARDI (BENCH WARRANT ISSUED AT 03.27.2026 HEARING)
FILED BY: DENARDI, DANA
TENTATIVE RULING:

On March 27, 2026 a hearing on a properly noticed Civil Subpoena (Duces Tecum) for Personal Appearance and Production of Documents, Electronically Stored Information and Things at Trial or hearing was held in Department 32. There was no appearance by the Defendant Kevin Denardi.

The court issued a bench warrant for Debtor Kevin Denardi for failing to appear at the hearing on March 27, 2026. The court held the warrant until April 10, 2026 at 9:00 a.m.

The court's records reflect that Debtor Kevin Denardi was served with notice of the April 10, 2026 hearing date, time and location and of the fact that the court was holding a warrant to today's date and would issue the warrant if Debtor did not appear in court today.

IF DEBTOR KEVIN DEBTOR FAILS TO APPEAR IN PERSON, THE COURT WILL RELEASE BENCH WARRANT TO SHERIFF'S OFFICE FOR SERVICE. REMOTE OR ZOOM APPEARANCE IS NOT ACCEPTABLE.

7. 9:00 AM CASE NUMBER: C24-03265
CASE NAME: CORY GOODRICH VS. FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES**
FILED BY: GOODRICH, CORY JUSTIN
TENTATIVE RULING:

The court grants the motion of Plaintiffs, as prevailing parties in this action brought pursuant to the Song-Beverly Consumer Warranty Act, to an award of attorneys' fees and costs. The court finds the requested fees are reasonable, as is the application of the requested Lodestar Enhancement. The court notes there may be a mathematical or typographical error in the amount prayed for in the Plaintiffs' Notice of Motion and Motion (where the total amount prayed for, $27,481, did not appear to be mathematically correct), and awards $37,590.00 in attorneys' fees and $1,141.75 in costs, the amount stated in the Plaintiffs' Reply at page 8. The fees must be paid to plaintiffs' attorneys within 30 calendar days of service of notice of entry of this order on counsel for the Defendant.

8. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION IN RE: INTERVENE**
FILED BY: MOBILITAS INSURANCE COMPANY
TENTATIVE RULING:

The unopposed motion of Mobilitas Insurance Company ("Mobilitas") to Intervene as a Defendant and as a Cross-Defendant in this action is granted. Mobilitas shall file and serve its Proposed Answer in Intervention to the Complaint and its Proposed Answer in Intervention to the Cross-Complaint within 10 calendar days of this order.

9. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
***HEARING ON MOTION IN RE: STAY PENDING RESOLUTION OF MOTION TO DISQUALIFY COUNSEL**
FILED BY: TAYLOR, CECILY
TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Stay All Further Proceedings Pending Resolution of Motion to Disqualify Counsel ("Motion").

The Motion is **denied** as outlined below.

Factual and Procedural Background

This matter relates to business dealings between the parties. On November 21, 2025, Plaintiff filed the Verified Complaint asserting four causes of action: (1) breach of contract; (2) tortious interference; (3) fraudulent misrepresentation; (4) defamation, and (5) conversion.

Plaintiff obtained a default against Defendant Steve Smith on January 6, 2026. Defendants Smith & Company Restoration Products, Inc., Steve Smith as Trustee of The Brain Trust, and The Brain Trust demurred to the Complaint on January 8, 2026. It is currently scheduled for hearing on July 24, 2026.

On January 28, 2026, Plaintiff filed a Motion to Disqualify Counsel which is set for hearing on May 1, 2026.

On March 11, 2026, Plaintiff filed an *ex parte* application for TRO and Preliminary Injunction. It was denied by the Court on March 16, 2026.

On March 18, 2026, Defendant Steve Smith filed a motion to set aside default currently set for hearing on July 17, 2026.

Plaintiff's Citation to Legal Authority

The Court must begin by noting that it appears that Plaintiff may have relied on using Artificial Intelligence (AI) to assist with preparing her brief. Most, if not all, of the citations are either non-existent or do not stand for the proposition asserted.

Plaintiff's notice indicates that the Court has authority to stay the action under Code of Civil Procedure section 371.5. While the Code of Civil Procedure contains a § 371 and § 372, it does not contain a § 371.5.

The main body of Plaintiff's motion relies on Code of Civil Procedure §§ 128 (a)(3) and 373.5. Plaintiff asserts that § 128 (a)(3) provides that "every court has the inherent power 'to issue any order necessary to the exercise of its jurisdiction.'" (Motion at 4:13-16.) Section 128 (a)(3) actually states that the court has the power: "To provide for the orderly conduct of proceedings before it, or its officers." The language cited by Plaintiff appears nowhere in the statute.

Plaintiff also contends that § 373.5 "expressly authorizes the Court to 'stay the proceedings in the action or any part thereof' whenever 'irreparable injury would result from a continuance of the action.'" (Motion at 4:26-5:1.) Again, neither of those quotations appear in that statute. Instead, § 373.5 pertains to appointment of guardian ad litem where unascertained persons of designated class are interested in property. This has nothing to do with the Court's inherent power to stay proceedings.

Plaintiff's citation to case authority fares no better. She cites to *Landis v. North American Co.* (1936) 299 U.S. 248, 254-55 for the proposition that courts may suspend proceedings "for the purpose of justice." (Motion at 4:16-20.) First off, that quotation appears nowhere in that case. Second, that case discussed the propriety of issuing a stay where a similar action was filed in a completely different venue. That situation does not apply here. Likewise, Plaintiff's citation to *Mowrer v. Superior Court* (1969) 3 Cal.App.3d 223, 227-28 does not support the parenthetical Plaintiff provides related thereto. That case did not involve a stay but instead dealt with contempt proceedings. Issues not relevant to the current motion.

Finally, Plaintiff cites *Freiberg v. City of Santa Ana* (1985) 167 Cal.App.3d 332, 338 for the proposition that good cause need only show prejudice or inefficiency. (Motion at 5:17-18.) A search for that citation brings up the case of *Barbary Coast Furniture Co. v. Sjolie* (1985) 167 Cal.App.3d 319 – which runs through page 335. The pin cite to page 338 refers to the case *Ciampi v. Red Carpet Corp.* (1985) 167 Cal.App.3d 336. The Court has been unable to locate a case styled as *Freiberg v. City of Santa Ana.*

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held:

> [R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: "A fake opinion is not 'existing law' and citation to a fake opinion does not provide a non-frivolous ground

> for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system." (citations omitted) *Noland*, supra, 114 Cal. App. 5th at 445.

As noted by the *Nolan* court, it is a fundamental duty of attorneys to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. (*Ibid.*) Failing to do so is sanctionable conduct.

While *Nolan* involves an attorney's actions in providing false and misleading authority to the court, the same principles apply to non-represented parties. "Pro. per. litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts "see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys." (*Ibid.*) "To say otherwise would be to give pro per litigants … an unfair advantage over parties represented by attorneys bound by the code." (*Ibid.*) "Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per." (*Ibid.*)

"[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants 'must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.'" (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

The Court therefore issues an Order to Plaintiff Cecily Taylor to appear and show cause, on Friday May 8, 2026 at 9:00 a.m. in Department 32, if cause there be, why the court should not impose monetary sanctions of up to $1,000 for submitting non-existent, that is, false legal authority to the Court, and for misrepresenting the holdings and content of existing legal authority to the Court. Any response by Plaintiff to this Order to Show Cause must be in writing and must be filed and served on all parties or before noon on May 1, 2026. Plaintiff must check the Court's website for the tentative rulings for this department on May 7, 2026, after 1:30 p.m. and before 4:00 p.m. The link for the tentative rulings for civil departments is https://contracosta.courts.ca.gov/online-services/tentative-rulings. If Plaintiff wishes to contest the tentative ruling on this order to show cause, she must email this court (dept32@contracosta.courts.ca.gov) before 4:00 p.m. on May 7, 2026 indicating her intent to appear on May 8, 2026 (Zoom appearance is acceptable) and explaining the part of the tentative ruling she wishes to contest. Failure to email the court by 4:00 p.m. on May 7, 2026 means the tentative ruling will become the order of the court.

In addition, the Court is putting Plaintiff on notice that it will not tolerate continued citations to improper or non-existence legal authority. Plaintiff must ensure that all citations are to actual cases and/or statutes, that any quotations exist within the cited authority, and that the authority stands for the proposition asserted. Future failure to file appropriate papers will result in an order to show cause why sanctions should not be issued.

This warning applies to the currently pending motion to disqualify defense counsel. The Court has not reviewed that motion at this time, but if it finds that Plaintiff has failed to provide proper authority it may be inclined to sanction Plaintiff, that is, order the Plaintiff to pay monetary sanctions to the Court. She should make sure that all legal authority is accurate and it would be wise to withdraw the motion and refile it if there are improper citations.

Motion for Stay

It appears that the main concern Plaintiff has in seeking the stay is that the Court rule on the pending motion to disqualify before ruling on the demurrer filed by the entity Defendants. Given the current schedule of the hearings in this matter, this will be the case anyway. The upcoming hearings in this matter are as follows:

- May 1: Motion to Disqualify Counsel
- July 17: Motion to Set Aside Default by Defendant Steve Smith
- July 20: Case Management Conference
- July 24: Demurrer to Complaint

Based on the above, the next hearing is on the motion to disqualify. As such, there is no need to stay the proceedings pending the hearing on that motion.

"A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*OTO, L.L.C. v. Kho*

(2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court "explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.'" (*Ibid*. quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

Plaintiff has failed to show that a stay of these proceedings will 'accommodate the ends of justice' or promote any judicial efficiency.

Conclusion

Plaintiff's motion for a stay of the proceedings is **denied**.
The Court issues an Order to Plaintiff Cecily Taylor to appear and show cause, on Friday May 8, 2026 at 9:00 a.m. in Department 32, as described above and sets hearing on the Order to Show Cause for Friday, May 8, 2026 at 9:00 a.m. in Dept. 32.

10. 9:00 AM CASE NUMBER: C25-03717
CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION
HEARING IN RE: AND NTC FOR PRELIMINARY INJUNCTION
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Kristin Owen's Motion for Preliminary Injunction ("Motion").

Procedural Background

Plaintiff filed her Complaint for Preliminary and Permanent Injunctions, and for Damages on December 23, 2025. That same date, Plaintiff filed the Motion currently before the Court. Defendant opposes the Motion.

Defendant's Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

Standard

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) In deciding whether to issue a preliminary injunction, a court must weigh two "interrelated" factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) This determination is made on a sliding-scale such that "the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Id.* at 678.) "However, '[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is a possibility that the plaintiff would ultimately prevail on the merits of the claim." (*Ibid.*)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.)

Thus, a "plaintiff seeking a preliminary injunction bears the burden of presenting facts which show a reasonable probability that he will succeed on the merits." (*Citizens for Better Streets v. Board of Supervisors* (2004) 117 Cal.App.4th 1, 6.) To meet this burden, the party moving for the preliminary injunction must establish facts with affidavits or a verified complaint. (See e.g. CCP § 527(a).) An "injunction may issue *only* upon a satisfactory showing of sufficient facts *under oath*." (*Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 148.) "The requirement that good cause, *under oath*, must be shown in support of an injunction, is jurisdictional." (*Ibid.*)

Analysis

Initially, the Court notes it is unclear what relief Plaintiff is seeking via this Motion. The underlying dispute appears to relate to Plaintiff's occupancy of real property located at 742 Wedgewood Drive in Pittsburg, California. The introduction to the Motion states that "Defendant should be ordered to return the Property to the plaintiff and to leave the plaintiff alone until this case is resolved." The Proposed Order, however, states that the Defendant is restrained from performing "any of the following acts: The defendant never properly notified us of the sold of the property needs to be given back to us per exhibit a." The Court notes that there is no "exhibit a" attached to the Proposed Order nor the Motion.

As to the merits of the Motion, a plaintiff moving for a preliminary injunction has the burden to produce facts *under oath*, via, for example, affidavits, declarations, or a verified complaint, that supports their claims. (*Ancora-Citronelle Corp.*, supra 41 Cal.App.3d at 148.) The Complaint is not verified. As for the declaration in support of the Motion, it fails to include any such evidence. It merely states: "Plaintiff has evidence that modification has since been made by Selene finance. Prior lender and Selene is wailing to work with plaintiff." (Owen Decl. ¶ 3.) No additional evidence, for example the documents showing a modification, has been submitted.

Thus, on its face, Plaintiff has failed to meet her burden to produce any evidence to support her request for a preliminary injunction.

Even if the Court were to get to the weighing of the likelihood of prevailing and balancing of harms, Plaintiff has failed to meet her burden. As to the likelihood of prevailing, Plaintiff has failed to show what cause(s) of action she would likely prevail on. The Complaint is one for a preliminary and permanent injunction – i.e. for injunctive relief in general. "Injunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief.'" (*Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734.)

As Plaintiff has failed to identify any cause of action at issue, she has failed to show she is likely to succeed on any of her underlying claims. If a party fails to show they are likely to succeed on the underlying claims, the Court does not address the balancing of harms. (*Butt,* supra, 4 Cal.4th at 677-678.)

Conclusion

The granting of a mandatory preliminary injunction "is not permitted except in extreme cases where the right thereto is clearly established and it appears that irreparable injury will flow from its refusal.'" (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell, supra,* 141 Cal. 4th at 1481.)

Plaintiff has failed to meet this substantial burden. Based on the above, Plaintiff's motion for a preliminary injunction is **denied.**

11. 9:00 AM CASE NUMBER: MSC15-01952
CASE NAME: MCGUIRE VS BRENKLE
***HEARING ON MOTION IN RE: FOR ORDER AWARDING ATTORNEY'S FEES**
FILED BY: MCGUIRE, FRANK J
****TENTATIVE RULING:****

The court continues this matter on its own motion to Friday, May 8, 2026 at 9:00 a.m.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
****TENTATIVE RULING:****

Court notes notices were sent to potential claimants in advance of January 9, 2026 and no responses were received. The court ordered notices resent for the hearing date of April 10, 2026 at 9:00 a.m., and no responses were received. Some of the notices sent have been returned to the court undelivered.

Pursuant to the Unclaimed Property Law, the Court orders the transfer of unclaimed surplus funds previously submitted to the court on December 13, 1012, in the amount of **$729,482.90** plus interest to the State Controller's Office.

The Clerk is directed to notice all parties and transmit a copy of this order to Financial Services of Contra Costa Superior Court.

13. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
***HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**
FILED BY: DEBRO, KARL
****TENTATIVE RULING:****

Petitioner Karl Debro filed a petition for writ of mandate under Code of Civil Procedure §§ 1094.5 and 1085, along with a cause of action for declaratory relief, against Respondents Contra Costa Community College District and the

Governing Board of the Contra Costa Community College District (hereafter "Respondents" or the "District").

A. Background

Petitioner was employed at the Contra Costa Community College District from 2008 to 2020 (Pet. ¶¶ 6, 26.) In July 2012 Petitioner was promoted to Academic Student Services Manager and Director of Gateway to College. (Pet. ¶6.) In October 2019, Respondents received complaints from two of Petitioner's subordinates, Kerry Sciacqua and Linda Johnson. (Pet. ¶17.) In January 23, 2020, Kimia Sagarchi, an investigator and lawyer for the District, informed Petitioner that he was being investigated. (Pet. ¶19.) Petitioner was interviewed by Sagarchi on April 20 and 28, 2020. (Pet. ¶20.)

On June 16, 2020, Petitioner was told that the allegations against him had been sustained. (Pet. ¶21.) He was placed on administrative leave on July 16, 2020. (Pet. ¶22.) On October 26, 2020, Petitioner received a notice and statement of charges that there exists cause to dismiss an academic manager. (Pet. ¶23.) Petitioner requested a Skelly Hearing and submitted a response to the allegations. (Pet. ¶24.) Respondents sent an amended notice of charges on December 9, 2020. (Pet. ¶25.) The governing board voted to terminate Petitioner's employment effective December 14, 2020. (Pet. ¶26.)

Respondent issued a second notice and statement of charges that there exists cause to dismiss an academic manager on December 16, 2022. (Pet. ¶27.) On February 21-24, 2023, there was an evidentiary hearing before an arbitrator. (Pet. ¶32; AR 1-319.) The hearing officer found several of the charges were substantiated and that there was sufficient evidence to constitute cause for Petitioner's termination. (Pet. ¶33; AR 1088-1126.) Contra Costa Community College District adopted the findings on August 10, 2023. (Pet. ¶39.) This writ petition followed.

Petitioner is seeking writs of mandate under both Code of Civil Procedure §§ 1094.5, for an administrative writ, and Code of Civil Procedure §§ 1085, for a traditional writ.

B. Standard of Review

For the administrative writ, Code of Civil Procedure §§ 1094.5(b) & (c) provide the standard of review.

"The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Code of Civil Procedure § 1094.5(b).)

"Where it is claimed that the findings are not supported by the evidence, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence. In all other cases, abuse of discretion is established if the court determines that the findings are not supported by substantial evidence in the light of the whole record." (Code of Civil Procedure § 1094.5(c).)

"In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 817.)

In reply, Petitioner cites to Education Code § 87682. That section states that on a petition for writ of mandate following administrative proceedings to dismiss a community college employee, the superior court exercises independent judgment on the evidence. (Ed. Code, § 87682.) Article 4, which includes sections 87660 to 87684 applies to community college faculty. (Ed. Code, § 87660.) Petitioner has not shown that he was faculty, nor that he had been tenured faculty prior to becoming an administrator. (See, *Ricasa v. Office of Administrative Hearings* (2018) 31 Cal.App.5th 262, 275.) Still, Respondent agrees that the Court should exercise its independent judgment here because the Court is reviewing the decision to terminate Petitioner's employment. (Opposition 4:18-19.)

As to the traditional writ claim, "[a] writ of mandate under Code of Civil Procedure § 1085 is a method for compelling an agency to perform a legal duty." (*Association of Irritated Residents v. San Joaquin Valley Unified Air Pollution Control Dist.* (2008) 168 Cal.App.4th 535, 542.) "The trial court's role in a traditional mandamus proceeding is a limited one. It must determine whether the agency's action was arbitrary, capricious, or without evidentiary support, and/or whether it failed to conform to the law. The trial court may not substitute its judgment for that of the agency or force the agency to exercise its discretion in a certain way." (*Id.* at 542-543.) "The reviewing court exercises independent judgment in determining with the agency's action was consistent with applicable law. (*Id.* at 543 (citations omitted).)

C. Evidentiary Issues

In an administrative writ, "extra-record evidence is admissible under this exception only in those rare instances in which (1) the evidence in question existed *before* the agency made its decision, and (2) it was not possible in the exercise of reasonable diligence to present this evidence to the agency *before* the decision was made so that it could be considered and included in the administrative record." (*Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 578.) "In the absence of a proper preliminary foundation showing that one of the exceptions noted in section 1094.5, subdivision (e) applies, it is error for the court to permit the record to be augmented. [Citation.] Determination of the question of whether one of the exceptions applies is within the discretion of the trial court, and the exercise of that discretion will not be disturbed unless it is manifestly abused. [Citation.]" (*Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.)

"In a traditional mandamus action, on the other hand, the court is not limited to review of the administrative record, but may receive additional evidence. [Citations.]" (*Western States Petroleum Assn., supra,* 9 Cal.4th at 578

578.)

Petitioner has included extra-record evidence. Respondent objects to this evidence as improper and that Petitioner did not file a motion to augment the record. The normal course is to file a separate motion to augment the record, however, the Court will consider the issue now.

Petitioner included a request for judicial notice of excerpts of Respondent's policy and procedure manuals and its vision statement, which are attached as exhibits 2 – 7 to Burton's declaration.

The attorney declaration also includes Petitioner's response to the statement of charges, submitted on December 1, 2020. (Burton dec. ex. 1.) Finally, Petitioner has included a declaration with additional facts and twelve exhibits attached to it.

For the traditional writ of mandate under § 1085, the Court accepts Petitioner's evidence and grants the requests for judicial notice.

For the administrative writ the Court grants the requests for judicial notice 4, 5 and 6, which are Respondent's policies. These policies are referenced in the administrative record. Further requests 4 and 5 were also included in the administrative record. The remaining requests for judicial notice are denied as they do not appear relevant to the administrative hearing.

The administrative hearing occurred in February 2023 with post-hearing briefs filed in April 2023. The Court uses April 28, 2023, as the cutoff date for whether information was available at the time of the administrative hearing. With the exception of exhibit A to Debro's declaration, the documents are dated prior to April 28, 2023. As to the remaining documents, however, Petitioner must show that it was not possible in the exercise of reasonable diligence to present this evidence to the agency *before* the decision was made so that it could be considered and included in the administrative record. Petitioner has not met this burden. These documents are communications between Petitioner or his attorney and Respondent or Respondent's employees. There has been no showing why these documents were not included in the administrative hearing.

Therefore, as to Burton exhibit 1, Debro's declaration and exhibits A to L, the Court will not consider these as part of the administrative record.

D. Administrative Writ

The petition alleges the following violations, (1) Respondent's decision to adopt the findings of fact and conclusion of law in the Hearing Officer's Opinion and Recommendation is not supported by the weight of the evidence and (2) they proceeded without jurisdiction and/or in excess of jurisdiction.

1. The Second Amended Notice

Petitioner argues that the second amended statement of charges, dated December 6, 2022, is timed barred and proceeding on the second amended charge constituted a lack of jurisdiction or actions in excess of jurisdiction.

The District's Personnel Manual states that "No disciplinary actions shall be taken for any cause which arose prior to the employee becoming permanent nor for any cause which arose more than two (2) years preceding the date of the filing of the notice of cause, unless such cause was concealed or not disclosed by the employee when it could reasonably be assumed the employee should have disclosed the facts to the District. Disciplinary action taken shall be commensurate with the offense charged. (RJN 4: Contra Costa Community College District Management, Supervisory, and Confidential Employees Personnel Manual §§ 14.0, 14.6.)

Petitioner points to *Brown v. State Pers. Bd.* (1985) 166 Cal.App.3d 1151, 1164, which held that "[n]either section 89539 nor any other provision of law permits the amendment of the charging document after CSUS has taken its disciplinary action." (*Id.* at 1164; accord *Brooks v. State Pers. Bd.* (1990) 222 Cal.App.3d 1068, 1076.) Both *Brown* and *Brooks* addressed the rights of state university employees under Education Code § 89539, which does not apply to a community college employee.

Here, the amended notice was issued December 11, 2020. (AR 823.) The second amended charges were filed December 6, 2022, more than two years later. (AR 488.) However, Respondent points out that they did not add anything to the second amended charges and instead only cleaned up the charges and removed some claims. (AR 2-3 (transcript 8:10-9:5).) Petitioner has not shown what the changes were between the first amended and second amended notices. Nothing in § 14.6 prevents the District from removing charges or factual allegations. Rather, § 14.6 operates to prevent new charges from being added more than two years after they occurred. There is no showing that the District added new causes for discipline. The Court finds that the District did not violate § 14.6.

2. Education Code §§ 87732 and 87734

Education Code § 87732 provides a list of reasons why a regular employee or academic employee can be dismissed. Section 87734 requires that if the reason for dismissal is unprofessional conduct or unsatisfactory performance the employee first be given a 90 days to improve performance.

Here, Respondent notified Petitioner of several reasons for his possible dismissal on June 16, 2020. (AR 411-418.) One month later, Respondent placed Petitioner on leave and thus, he was not given time to improve his performance. (AR1020 and 1092, 1142.) Thus, there is a possible violation of § 87734 here if substantial evidence only supports a dismissal for unprofessional conduct or unsatisfactory performance. Before reaching that question, however, the Court must first determine if sections 87732 and 87734 apply in this case.

Education Code § 87732 applies to “regular employee[s] or academic employee[s]”. Education Code § 72411.5 applies to administrators. It states that “In the absence of an express appointment or contract as provided in Section 72411, every administrator shall serve in his or her administrative assignment at the pleasure of the governing board.” Where there is an express appointment or contract that document will control. However, “[i]f the administrator has tenure as a faculty member, the dismissal of, and imposition of penalties for cause on, the administrator shall be in accordance with the provisions applicable to faculty members." (Education code § 72411.5.)

"[B]ased on our independent interpretation of section 72411, we conclude the trial court correctly found [petitioner] did not have either a statutory right or property right to his position as a community college administrator and therefore was not entitled to a writ of mandate directing District to reinstate him to his former position." (*Agosto v. Board of Trustees of Grossmont-Cuyamaca Community College Dist.* (2010) 189 Cal.App.4th 330, 338.)

Here, the hearing officer referred to Petitioner's position as "Academic Manager (Administrator)". (AR 1091, 1124-25.) There were also references to the rights of an administrator in Petitioner's exhibits and in his hearing briefs. (AR 409, 1025, 1186.) Respondent also referred to Petitioner as an administrator. (AR 1039, 1202.)

Petitioner argues that he should be classified as faculty, not an administrator because he is an academic administrator. Petitioner has not cited anything in the record that supports this argument. Within the record is a copy of the classification specification for Academic / Student Services Manager (AR 168 and 687-688.) The Court's review of this document does not show that he was classified as faculty.

The Court finds that Petitioner was an administrator under § 72411 and thus, not a regular or academic employee under § 87732. Because Petitioner was an administrator, he has not shown that he had rights under § 87732. However, the parties argue over whether § 87732 was complied with and therefore the Court will address that issue.

a. <u>Education Code § 87732</u>

Petitioner argues that Respondent violated Education Code § 87732, which states that "No regular employee or academic employee shall be dismissed except for one or more of the following causes:

(a) Immoral or unprofessional conduct.

(b) Dishonesty.

(c) Unsatisfactory performance.

(d) Evident unfitness for service.

(e) Physical or mental condition that makes him or her unfit to instruct or associate with students.

(f) Persistent violation of, or refusal to obey, the school laws of the state or reasonable regulations prescribed for the government of the community colleges by the board of governors or by the governing board of the community college district employing him or her.

(g) Conviction of a felony or of any crime involving moral turpitude.

(h) Conduct specified in Section 1028 of the Government Code [public employee cannot advocate to overthrow the Government].”

(Education Code § 87732.)

Petitioner also notes that the hearing officer did not reference § 87732 or make a specific finding that Petitioner had violated any of the provisions of Education Code § 87732. (AR 1125) But there has been no showing that such a specific finding is required.

Respondent argues that the violations found by the hearing officer meet Education Code § 87732(a), (b), (c), (d) and (f).

Both sides cite to § 87732 without providing any relevant case law. There is no discussion as to whether the hearing officer must make a specific finding regarding violations of § 87732. Thus, the Court will exercise its independent judgment to consider whether the facts support finding a violation under § 87732.

The Court finds that the first charge, giving Johnson a directive to falsify records, constitutes either unprofessional conduct or unsatisfactory performance. The Court also finds that the first charge is sufficient to support a finding of dishonesty. The hearing officer noted that Johnson's refusal to follow the instructions meant that Petitioner was not guilty of falsifying records. (AR 1115.)

Here, the evidence shows that Petitioner asked Johnson to backdate Sciacqua's class to August 9 and mark all students, but one, as absent from August 9 to August 28. Petitioner knew that Sciacqua's class did not start before August 28. (AR 5-6, 160, 202-203, 205 [see the discussion in § 4(a) for more detailed citations].) This evidence is sufficient to show that Petitioner instructed Johnson to falsify records, which supports a finding of dishonesty.

Since the first charge is sufficient to support a finding of dishonesty, as well as, unprofessional conduct and/or unsatisfactory performance, there was sufficient basis to dismiss Petitioner.

b. Education Code § 87734

Education Code § 87734 does not apply here. First, as noted above, Petitioner is an administrator and not subject to the same protections as other employees. Community College Administrators do "not have either a statutory right or property right to his position as a community college administrator… ." (*Agosto, supra,* 189 Cal.App.4th 330, 338.)

Further, assuming § 87732 applies, there is evidence to support a finding that Petitioner was dismissed for dishonesty. Thus, there are grounds for dismissal beyond unprofessional conduct and unsatisfactory performance, and Respondent was not required to give Petitioner 90 days to improve his performance.

3. Section 59311 of Title 5 of the California Code of Regulations

Petitioner argues that Respondent failed to comply with 5 CCR 59311. Section 59320 states that community colleges must ensure their programs and activities are available without unlawful discrimination. That section requires that community colleges investigate complaints of unlawful discrimination. (5 C.C.R. § 59311.) Complaints involving unlawful discrimination in employment must be filed within 180 days. (5 C.C.R. § 59328(g).) The investigation of complaints must be assigned to a neutral investigator. (5 C.C.R. § 59324.) A neutral investigator is "outside investigator or an internal investigator who is not in the chain of command of the respondent, not substantially implicated by the allegations in the complaint, and who is otherwise impartial." (5 C.C.R. § 59311(d).) The investigator is required to conduct an impartial fact-finding investigation. (5 C.C.R. § 59334.)

Petitioner argues that the Respondent violated these sections in several ways: (1) the investigator was not neutral, (2) the investigation was not impartial, (3) the charges leveled against Petitioner exceeded the scope of the discrimination complaints and (4) many of the charges were outside the 180-day time period.

Petitioner has not shown that the investigator was not neutral or that the investigation was not impartial. Petitioner complains that the investigator was from the law firm representing Respondent in this proceeding, but cites no law showing such conduct is not allowed.

Petitioner has not shown that these sections of the CCRs limit an investigation to only consider discrimination claims. The fact that the charges against Petitioner went beyond discrimination does not violate this section.

Petitioner argues that the charges were not filed within 180-days, but these rules require complaints to be filed with the District within 180-days. These rules do not state that the District has 180-days to bring any charges against an employee. Further, the substantiated charges here did not relate discrimination and thus, it is unclear how the 180-day rule applies to non-discrimination claims.

In short, the Court is not convinced that Respondent violated these sections of the CCRS.

4. Findings of Fact and Conclusions of Law

Petitioner challenges the charges that the hearing officer found to be substantiated as not being supported by the evidence.

a. Falsifying Records

The hearing officer found that Petitioner's directive to Johnson regarding the start date of a class was an unlawful order which constituted gross misconduct. (AR 1115.)

In early September 2019, Johnson was preparing reports on attendance for August 2019. (AR 584.) The resources specialists Chuon showed all students were absent from her class from August 9 to August 28. (AR 581-582.) Resource specialist Rodriguez showed some students as present and some absent from August 9 to August 28. She also showed one of Sciacqua's students was present in her class from August 9 to August 28. (AR 585.) Resources specialists Sciacqua showed that she did not meet with students until August 28. (AR 587-588.)

According to Petitioner, Johnson asked Petitioner how to handle the situation. Petitioner told Johnson to backdate Sciacqua's class so it showed it started on August 9. (AR 22.)

At the hearing, Johnson explained that the average daily attendance (ADA) counts if a student is present in any class that day and the ADA is a key source of funding for the Gateway program. (AR 5 (transcript 19:6-20:5).) In order to get ADA for a student, they must be enrolled in 180 minutes of class per day, however, in 2019 some students were only enrolled in 90 minutes of class. This means the program would not receive ADA for those students. (AR 5-6 (transcript 20:2-22:10).)

Johnson brought this issue to Petitioner and according to Johnson, "the end result was that he asked me to build a class, populate it with these students beginning back on the first day of school, which I think that semester was the 9th of August, and put absences in for every day so that it would reflect that they were enrolled in two classes even though they never attended that one." (AR 5 (transcript 22:16-23).) Johnson's concern with this directive was that students were not enrolled in the class on August 9 and did not even know about it. (AR 6 (transcript 23:5-24:2).) Johnson believed this request was asking her to falsify records and she reported this issue to Chancellor Mojdeh

Mehdizadeh. (AR 6 (transcript 23:24-24:23).)

At the hearing, Petitioner explained that there was one student who was showing up to class in early August, but was not receiving credit because he was assigned to Sciacqua's class and she was not available until August 28. (AR 202 (transcript 589:5-589:19).) Petitioner was trying to find a way to give that student credit for attendance and thought it would not matter that to mark students absent who did not attend class (because no class was held). Petitioner did not think that the ADA would have been affected. (AR 202-203 (transcript 589:22-591:25).)

Mehdizadeh held a meeting with Johnson and Petitioner and ultimately determined that August 28 would be the start date for the class. (AR 160 (transcript 422:2-22); AR 205 (transcript 600:2).)

Petitioner argues that the law does not support a finding that he violated policy regarding the start date of the class. Education Code § 46180 and the MOU between Contra Costa College and West Contra Costa Unified School District states that student attendance would be no less than 180 minutes daily and no less than 180 days per academic year. (Education Code § 46180; AR 617.) Petitioner argue that under section 46180, as long as a student attends one class, they get credit for average daily attendance. Petitioner also argues that marking students absent who did not attend class does not affect the daily attendance averages.

The Court does not find Petitioner's arguments persuasive. The record shows that Petitioner asked his staff to backdate the start of a class and populate it with students who did not know that class had started. Education Code § 46180 may have been a motivating factor in Petitioner's decision, but the Court need not find that that section was in fact violated. Rather, the important fact here is that Petitioner told his subordinate to fabricate the start date of a class when the class had not in fact started. The hearing officer's finding on the improper directive to Johnson was supported by the weight of the evidence.

b. Employees Working Outside Classification

The hearing officer found that Petitioner violated Education Code § 88010 by having resource specialists perform teaching duties, which is outside their classification. (AR 1118.)

A community college district cannot require a classified employee to perform duties that are not reasonably related to the duties prescribed by the Governing Board for more than five days in a 15-day calendar period without additional compensation. (Ed. Code § 88010.)

Teaching is outside the scope of the Resource Specialists' job classification, which Debro conceded. (DAR 164, 196-194, 630-632.)

The evidence shows that Petitioner had the instructional assistants teach the leadership class the first semester. (AR 191-192 (Transcript 545:21-547:13).) When they first started teaching the leadership class, none of the instructional assistants complained that they were working outside of their class. (AR 192, (Transcript 549:3-5).) Petitioner informed his supervisors that the instructional assistants and/or resource assistants were teaching classes. (AR 192-193 (transcript 549:10-553:16.) Petitioner informed Mehdizadeh that the resource assistants were teaching leadership classes. (AR 183 (transcript 511:21-512:7); AR 192-193 (transcript 550:23-551:6).) Petitioner's supervisors did not inform him that he was required to follow education code provisions for secondary schools in the running of the Gateway program. (AR 193 (transcript 553:13-16).)

Later, during an external review of job descriptions (the Hay Study), petitioner told the Hay Group that the duties of the instructional assistants did not match their job descriptions. (AR 193 (transcript 554:7-14).) When Petitioner informed the Hay Group that the duties of the instructional assistants did not match the job descriptions, no one informed him that the descriptions had to match the jobs. (AR 193 (transcript 554:15-18).)

Petitioner instructed Resource Specialists Rodriguez, Chuon and Sciacqua to teach classes. (AR 34-35 (transcript 135:7-140:20 [Rodriguez]); AR 40 (transcript 157:21-163:23 [Chuon]); AR 75 (transcript 204:14-208:9); AR 87 (transcript 253:14-18 [Sciacqua]).) When Resource Specialists objected to performing teaching functions, Petitioner said he might need to eliminate their positions. (AR 087-088 (transcript 253:14-254:5).) Teaching classes is not part of the job description of resource specialists. (AR 745.)

The weight of the evidence shows that Petitioner directed resources specialists to teach classes, which was not part of their job description. This shows that Petitioner violated Education Code § 88010. The Court is somewhat trouble by the evidence showing that Petitioner repeatedly told his supervisors what he was doing and was never told that such conduct is improper. But Petitioner cites no law that would allow this Court to find that Petitioner is somehow excused from following the law because he informed his supervisors.

c. Violation of Union Rights

The hearing officer also found that Petitioner's refusal to allow Johnson an union representative during a meeting regarding the start date of the class, where he accused her of unprofessional behavior, was a *Weingarten* violation. (AR 1115-1116.) The hearing officer found that Petitioner improperly interfered with the right of union members to communicate with their union. (AR 1119.)

One of the main alleged actions was an email between Petitioner and his subordinate, Kerry Sciacqua. Petitioner sent an e-mail to his staff regarding attendance for intersession. (AR 671-672) On January 16, 2020, Sciacqua sent an e-mail to Petitioner requesting clarification of Petitioner's instructions and CCed her union representative and the college president. (AR 670-671) On January 17, 2020, Petitioner sent two e-mails to Sciacqua. In one e-mail, Petitioner thanked Sciacqua for her concern. (AR 667) In the other e-mail, Petitioner stated the following:

> In my experience, when team members bring problems to the leader and/or team first rather than pushing them out to their boss, teams just work a lot better. The best time to escalate in my experience, is when problems are swept under the rug and/or ignored after earnest good-will efforts to get them addressed.

(AR 670.)

The interim president, Damon Bell, emailed Petitioner on January 31, 2020, explaining that a union member has the right to bring these sorts of concerns to their union and instructed Petitioner to stop making any comments that could be perceived as discouraging them from communicating with their union. (AR 156.)

In another incident, Petitioner asked Johnson to meet with him in his office. Johnson stated that she needed union representation, to which Petitioner responded, “That’s fine, but right now I am mandating you to sit down.” (AR 8 (transcript 32:5-13); AR 9 (transcript 33:25-34:12; AR 27-28, (transcript 105:16-110:7).) A few days later, Petitioner called Johnson into his office for another meeting but did not advise her to bring a union representative. (AR 266 (transcript 730:20-731:9).)

Petitioner argues that the meeting was not disciplinary and he testified that he did not believe it was disciplinary in nature. (AR 267 (transcript 731:8-9).). But there is evidence to the contrary. Petitioner wanted to talk to Johnson about her behavior and told her “Today when I tried to talk to you about the fact that this behavior has not improved, you said you were going home. I told you to stay and sit down. You agreed but said you would not say anything. Your behavior needs to improve immediately.” (AR 9 (transcript 33:25-34:4).) Petitioner acknowledged that a supervisor talking to a subordinate about unprofessional behavior could be disciplinary in nature. (AR 266 (transcript 730:1-16).)

Petitioner’s email to Sciacqua on January 17 can be fairly viewed as discouraging her from contacting her union representatives. Further, Petitioner’s meetings with Johnson in September was disciplinary in nature. His communications showed that he was concerned about her behavior and that he wanted her to improve it immediately. Petitioner did not stop the first meeting so a union representative could attend, nor did he ensure that a union representative could attend their second meeting.

The Court finds that the weight of the evidence shows that Petitioner improperly interfered with union members' rights to communicate with their union and have a union representative present during a potentially disciplinary meeting. Therefore, the evidence supports a finding that Petitioner interfered with union members' rights.

d. Johnson's Rights / Board Policy 2055

Finally, the hearing officer found that Appellant violated Board Policy 2055. (AR 1124)

Board Policy 2055 provides protections for employees to report suspected incidences of unlawful activities by District personnel without fear of retaliation. Here, the record shows that Johnson made a complaint against Petitioner on October 15, 2019. Petitioner prepared a draft evaluation of Johnson in late October or early November 2019. (AR 649-650, 165 (transcript 441:25-42:3).) That review rated Johnson as needs improvement. (AR 650.) Mehdizadeh explained that it was unusual to receive a review for the 2018-2019 school year (ending June 30) that late in the year. (AR 165 (transcript 442:11-21).) The record also shows that Johnson's previous review in 2015 was exceeds expectations. (AR 653-654.; AR 167 (transcript 447:6-23.)) Mehdizadeh raised a concern with Petitioner about the 2019 review appearing retaliatory and Petitioner offered to redo it. (AR 167 (transcript 449:5-8).)

Here, the record shows that Petitioner prepared a negative performance review of Johnson within one month of her submitting a complaint against him. His previous performance review of her was positive. The timing of a negative review is highly suggestive of retaliatory motive. Further, when questioned about the performance review, Petitioner offered to redo it rather than explain what conduct by Johnson led to such a review. The Court finds that the weight of the evidence supports a finding that Petitioner's performance review of Johnson was retaliatory.

e. Mismanagement of Finances

Petitioner did not provide a discussion on the hearing officer's finding that Petitioner was slightly negligent for his mismanagement of the fiscal finances for the Gateway Program. (AR 1123) Therefore, Petitioner has not met his burden of showing the hearing officer's finding was incorrect.

E. Traditional Writ

In order to obtain a writ based upon an alleged violation of a ministerial duty, the petitioner must show '""(1) A clear, present and usually ministerial duty on the part of the respondent … ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.''" [Citation.]" (*CV Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 278.)

Petitioner argues that Respondent had several ministerial duties that it failed to comply with. Although additional points were raised in the petition, the Court focuses on the issues discussed in the moving papers.

1. Performance Reviews

Petitioner argues that Education Code § 87663(i) required Respondents to establish and disseminate written evaluation procedures for administrators. And the Board Policy 2026 required that managers be evaluated on a regular basis. (RJN 6.) Board Policy 2026 states that "Managers, supervisors and confidential employees shall be evaluated on a regular basis. The purpose of the evaluation process is to help each manager, supervisor and confidential employee perfect skills in their respective areas. The evaluations will be completed according to the process and timelines indicated in the Governing Board approved Management, Supervisory and Confidential Employees Personnel Manual." (RJN 6.)

Here, the Governing Board apparently did establish evaluation procedures for administrators, as seen in Board Policy 2026 and § 6 of the Management, Supervisor and confidential Employees Personnel Manual. (RJN 5.)

Petitioner never had a performance review, but Mehdizadeh met with him weekly. (AR 173 (transcript 471:9-15); 193 (transcript 553:13-16).) It is possible that the District violated Policy 2026 and/or § 6 of the Personnel Manual by failing to give Petitioner timely performance reviews. However, it is

Petitioner’s burden to show a violation, and here he has not shown what sections were violated and where there is evidentiary support for that argument in the record.

Further, Respondent argues that Petitioner cannot obtain writ relief for any violation here as he is no longer an employee of the District. “Mandate will not lie unless the applicant for the writ has a present interest in the remedy he seeks and the respondent has a present duty to perform the acts the applicant seeks to compel. [Citations.] The petitioner's right and the respondent's duty are measured as of the time the proceeding is filed. [Citation.]” (*Lungren v. Deukmejian* (1988) 45 Cal.3d 727, 731-732.)b “To be entitled to relief, [petitioner] must show the District has a clear, present and ministerial duty to [rehire him] and that [he] has a clear, present and beneficial right to performance of that duty entitling [him] to a writ of mandate. [Citation.]” (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

In reply, Petitioner cites to *Achene v. Pierce Joint Unified School Dist.*, 176 Cal.App.4th 757 (2009). *Achene* held that a certificated probationary employee was entitled to performance reviews before being terminated for unsatisfactory performance and held that the district's order dismissing her during the school year for unsatisfactory performance is void. (*Id.* at 771.) *Achene* does not apply here because that case is based upon Education Code § 44664 and related sections dealing with certificated employees. As the court explained “Probationary employees may not be dismissed during the school year except for cause or unsatisfactory performance. (§ 44948.3; see also *Kavanaugh v. West Sonoma County Union High School Dist*. (2003) 29 Cal.4th 911, 917.) For that reason [petitioner] had a fundamental vested interest in continuing her employment through the end of the 2006–2007 school year.” (*Id*. at 766.) Here, by contrast, Petitioner did not have a fundamental vested interest in continuing his employment through the end of the school year.

The Court agrees with Respondent that Petitioner has not shown that he has a present right to performance reviews as he is no longer an employee of the district. Therefore, Petitioner’s writ challenging the lack of regular performance reviews fails.

2. PERB Decisions

Petitioner argues that Respondents had a ministerial duty to advise Petitioner of the charges against him prior to any investigative interview, *United Faculty of Contra Costa* v. *Contra Costa Community College District v. Contra Costa Community College District,* PERB Decision 2652 (Dated June 26, 2019), 2019 Cal. PERB LEXIS 98. Petitioner also argues that in *California School Employees Association & Its Capistrano Chapter 224 v. Capistrano United School District*, PERB Decision 2440 (June 30, 2015), 2015 Cal. PERB LEXIS 37, held that an employee is entitled to an attorney during an investigatory interview and here, the investigator did not allow Petitioner an attorney.

As an initial matter, the Court notes that Petitioner did not attach copies of the PERB decisions. The Court was able to locate both decisions on LEXIS although locating these decisions took more time than usual. In the future, the parties should provide copies of administrative decisions and/or provide a citation that is readily available through LEXIS (the Court's legal research provider).

As to the merits, both PERB decisions involve employees in a union. Respondent argues that Petitioner is not permitted to be in a union. (Gov. Code § 3543.4.) In reply, Petitioner argues that he was classified as faculty, without providing a supporting citation to the record. The Court need not decide whether Petitioner has a legal right to join a union, but instead finds that Petitioner has not shown that he was in fact part of a union and thus, the cited PERB decisions do not apply.

Petitioner has not shown that Respondent had a ministerial duty to advise Petitioner of the charges against him prior to any investigative interview and thus, Petitioner's traditional writ on this ground fails.

F. Conclusion

The Court finds that Petitioner has not met his burden on the writ claims and therefore, **both writs are denied**.

The Court's decision disposes of the writ claims, but Petitioner also filed a cause of action for declaratory relief. **The Court sets a case management conference for August 7, 2026 at 8:30 a.m.** Petitioner shall notify the parties and the Court whether he intends to proceed with his declaratory relief claim no later than 10 days before the case management conference. All parties must file a Case Management Conference Statement no later than 10 days before August 7, 2026.

14. 9:00 AM CASE NUMBER: N26-0247
CASE NAME: CLAIM OF:CAMILA GARCIA NABOR
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

After careful examination of the Petition the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. Counsel must submit a Proposed Order Approving Compromise of Minor's Claim and a Proposed Order to Deposit Funds into a Blocked Account.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS**
FILED BY: INSULATION GURU, INC DBA HVAC GURU
TENTATIVE RULING:

Defendant Insulation Guru's motion to Compel Further Responses to Requests for Admissions, filed December 1, 2025, is **denied** for lack of notice. The moving papers filed in this case listed a hearing date of "0/10/26" and the court file contains no amended notice to Plaintiff Aharon Poliker that the hearing date was April 10, 2026. Sanctions are denied.

16. 9:01 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR DOCUMENT PRODUCTION**
FILED BY: INSULATION GURU, INC DBA HVAC GURU
****TENTATIVE RULING:****

Defendant Insulation Guru's motion to Compel Further Responses to Requests for Document Production, filed December 1, 2025, is **denied** for lack of notice. The moving papers filed in this case listed a hearing date of "0/10/26" and the court file contains no amended notice to Plaintiff Aharon Poliker that the hearing date was April 10, 2026. Sanctions are denied.

17. 9:01 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA**
FILED BY: KROPP, SPENCER
****TENTATIVE RULING:****

Notice of withdrawal filed. Hearing vacated.

Law & Motion
Add On

18. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
***HEARING ON MOTION IN RE: BE RELIEVED OF COUNSEL RE: MICHAEL WADDINGTON**
FILED BY: BAHRAMI, NAVID
****TENTATIVE RULING:****

Motion of attorney Michael Waddington to be relieved as counsel for Navid Bahrami is GRANTED.

The court will sign the Proposed Order submitted by attorney Waddington on February 10, 2026. The order is effective upon service of notice of entry of this order upon Navid Bahrami.

Navid Bahrami is ordered to appear for the Case Management Conference set in this department for April 10, 2026 at 9:00 a.m.